



CHAPTER ix.

An Act to confer further powers on the Plymouth and Stonehouse Gas Light and Coke Company and for other purposes. A.D. 1903.
[30th June 1903.]

WHEREAS the Plymouth and Stonehouse Gas Light and Coke Company (in this Act called "the Company") was constituted by the Plymouth and Stonehouse Gas Act 1855 (in this Act called "the Act of 1855") and further powers were conferred upon the Company by the Plymouth and Stonehouse Gas Act 1879 (in this Act called "the Act of 1879") and the Plymouth and Stonehouse Gas Act 1894 (in this Act called "the Act of 1894") and the Plymouth and Stonehouse Gas Act 1898 (in this Act called "the Act of 1898") and which together with the Act of 1855 are in this Act called "the recited Acts":

18 & 19 Vict.
c. xxxv.

42 & 43 Vict.
c. cxliii.

57 & 58 Vict.
c. cex.

61 & 62 Vict.
c. clxx.

And whereas under the Acts of 1855 and 1879 the capital of the Company consisted of the following (that is to say):—

Under the Act of 1855—

Two thousand five hundred shares of ten pounds each with a maximum dividend of ten per centum per annum ;

Seven thousand shares of ten pounds each with a maximum dividend of seven and a half per centum per annum :

Under the Act of 1879—

Three thousand shares of ten pounds each bearing dividend at the rate of seven per centum per annum :

And whereas by the Acts of 1879 1894 and 1898 provisions were made for limiting the dividend to be paid by the Company out of their profits on the capital by those Acts authorised and it was provided that the dividend to be paid should be subject to increase or reduction in accordance with any diminution or increase in the standard price charged by the Company for gas supplied by them :

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And whereas by the Act of 1894 the shares issued under the Act of 1855 with a maximum dividend of ten per centum per annum were converted into a sum of fifty thousand pounds ordinary stock bearing dividend at the rate of five per centum per annum :

And whereas the authorised capital of the Company now consists of the following (namely):—

Seven thousand shares of ten pounds each bearing dividend at the rate of seven and a half per centum per annum ;

Three thousand shares of ten pounds each bearing dividend at the rate of seven per centum per annum ; and

Two hundred and ten thousand pounds ordinary stock bearing dividend at the rate of five per centum per annum of which forty-eight thousand five hundred and seventy pounds now remains unissued :

And whereas under the recited Acts the Company have been empowered to borrow the total sum of ninety thousand pounds of which total sum they have borrowed and now owe the sum of sixty-nine thousand three hundred and forty-seven pounds which has been secured by the issue of fifty thousand pounds three per centum debenture stock upon the sale of which no premium was obtained and twenty thousand pounds three and a half per centum debenture stock which realised upon the sale thereof the sum of nineteen thousand three hundred and forty-seven pounds :

And whereas the capital of the Company raised as aforesaid has been expended upon the undertaking and it is expedient for the purposes of this Act and for the general purposes of the undertaking that the Company should be empowered to create and issue further capital in addition to the sum of forty-eight thousand five hundred and seventy pounds now remaining unissued :

And whereas the parish of Plymstock in the county of Devon is adjacent to the present limits of supply of the Company and is not now supplied by gas and it is expedient that the Company should be empowered to supply gas within that parish :

And whereas the capital expenditure which will be involved in supplying gas to that part of the Company's existing limits of supply which comprises the parishes of Tamerton Folliot and Egg Buckland and to the parish of Plymstock is considerable in relation to the present demand for gas within those parishes and it is expedient that the Company should be empowered to charge a higher price for gas supplied by them in those parishes than they charge for the time being in the borough of Plymouth and the remainder of the Company's limits of supply :

And whereas it is expedient that further powers with respect to the conduct and management of their undertaking should be conferred upon the Company as in this Act provided : A.D. 1903.

And whereas the purposes of this Act cannot be effected without the authority of Parliament :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say) :--

PRELIMINARY.

1. This Act may be cited as the Plymouth and Stonehouse Gas Act 1903 and the recited Acts and this Act may be cited together as the Plymouth and Stonehouse Gas Acts 1855 to 1903. Short title.

2. The following Acts and parts of Acts so far as the same are applicable for the purposes and are not inconsistent with the provisions of this Act are hereby incorporated with this Act (namely) :— Incorporation of Acts.

The Lands Clauses Acts (except the provisions thereof with respect to the purchase and taking of lands otherwise than by agreement) :

The Gasworks Clauses Act 1847 as amended by the Gasworks Clauses Act 1871 :

The provisions of the Companies Clauses Consolidation Act 1845 with respect to the following matters (that is to say) :—

The distribution of the capital of the Company into shares ;

The transfer or transmission of shares ;

The remedies of creditors of the Company against the shareholders ;

The borrowing of money by the Company on mortgage or bond ;

The consolidation of the shares into stock ;

The making of dividends ;

The giving of notices ; and

The provision to be made for affording access to the special Act by all parties interested :

And Part I. (relating to cancellation and surrender of shares)

Part II. (relating to additional capital) and Part III. (relating to debenture stock) of the Companies Clauses Act 1863 as amended by subsequent Acts.

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Interpreta-
tion.

3. In this Act the several words and expressions to which meanings are assigned by the Acts wholly or partly incorporated herewith have the same respective meanings unless there be something in the subject or context repugnant to such construction.

The expression "limits of supply" means the limits within which the Company are authorised by the recited Acts to supply gas as extended by this Act.

EXTENSION OF LIMITS OF SUPPLY.

Extension
of limits of
supply.

4. From and after the passing of this Act the limits of supply of the Company shall be and the same are hereby extended so as to include the parish of Plymstock in the county of Devon and subject to the provisions of this Act the Company shall have and may exercise within the extended limits all and the like powers privileges and authorities for and in relation to the supply of gas including the powers of breaking up streets and roads and levying and recovering rates rents and charges for the supply of gas and apparatus used in the consumption of gas and shall be subject to all and the like duties liabilities and obligations in respect thereof as under the recited Acts they now have and are subject to within the existing limits of supply of the Company :

Provided also that the Company shall not by any exercise of their powers in regard to the expenditure of capital or otherwise within the area added to their limits of supply by this section either increase the price charged for gas within the limits of supply of the Company as the same existed previously to the passing of the Act of 1898 or prevent or hinder the reduction of that price under the provisions of the recited Acts.

For protec-
tion of Ply-
mouth Cor-
poration.

5. The following provisions for the protection and benefit of the mayor aldermen and burgesses of the borough of Plymouth (in this section referred to as "the corporation") shall unless otherwise agreed in writing apply and have effect (that is to say) :—

(1) All mains pipes and apparatus to be laid on or across Laira Bridge or the immediate approaches thereto shall be laid in such position as the Corporation shall by writing under the hand of the borough engineer direct and all works shall be so executed as not to cause any injury to the bridge or interfere with the stability or appearance thereof :

(2) All works to be laid on or across or in any way affecting the bridge shall be executed at the expense of the Company under the supervision and to the reasonable satisfaction of the borough engineer and in accordance with plans sections and

specifications to be submitted to and approved of by him in writing before the commencement of any such works : A.D. 1903.

- (3) The works shall be so executed as not to stop or unreasonably interfere with the traffic on the bridge and approaches :
- (4) The Company shall pay to the Corporation the reasonable costs in relation to the supervision by this section authorised :
- (5) Section 24 (Supply and price of gas to public lamps) of the Gasworks Clauses Act 1871 shall in regard to its application within the borough of Plymouth be read and have effect as if the words “ one hundred yards ” were substituted for “ fifty yards ” in that section :
- (6) If any difference shall arise between the Company and the borough engineer or the Corporation under this section such difference shall be determined by an engineer to be appointed on the application of either party by the President of the Institution of Civil Engineers.

CAPITAL &c.

6. The Company may apply to the purposes of this Act to which capital is properly applicable any moneys they may have already raised or are authorised to raise and may from time to time raise (in addition to their present authorised capital) any further sums not exceeding in the whole one hundred thousand pounds by the creation and issue of additional ordinary stock but no stock shall vest in the person accepting the same unless and until the full price of such stock including any premium obtained upon the sale thereof shall have been paid in respect thereof : Power to
Company to
raise addi-
tional capital.

Provided that it shall not be lawful for the Company to create and issue under the powers of this section any greater nominal amount of capital than shall be sufficient to produce (including any premium which may be obtained on the sale thereof) the sum of one hundred thousand pounds.

7. Every person who becomes entitled to any such additional ordinary stock shall in respect of the same be a holder of stock in the Company and shall subject to the provisions of this Act be entitled to a dividend with the other holders of stock. Rights of
new stock.

8. Except as hereinafter provided the Company shall not in any one year pay out of their profits any larger dividend upon the ordinary stock created under the powers of this Act than five pounds in respect of every one hundred pounds for the time being actually paid up which rate of dividend is hereinafter referred to as “ the standard rate of dividend.” Dividends
upon new
capital.

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New stock to
be offered by
auction or
tender.

9. Notwithstanding anything in this Act contained the Company shall when any stock forming part of the additional capital authorised by this Act is to be issued and before offering the same to the holder of any other stock or shares of the Company and whether the ordinary stock or shares of the Company is or are at a premium or not offer the same for sale by public auction or by tender in such manner at such times and subject to such conditions of sale not inconsistent with the provisions of this Act as the directors of the Company shall from time to time determine Provided that—

- (1) At any such sale no single lot shall comprise more than one hundred pounds nominal value of stock :
- (2) Notice of the amount of the reserve price put upon such stock shall be sent by the Company in a sealed letter to the Board of Trade not less than twenty-four hours before the day of auction or the last day for the reception of tenders as the case may be and such letter may be opened after such day of auction or last day for the reception of tenders and not sooner :
- (3) No priority of tender shall be allowed to any holder of stock or shares of the Company except that if any bid or offer by tender of any such holder be the same in amount as any bid or offer made by any other person the bid or offer of such holder may be accepted in preference and preference may in like manner be given to any employee of the Company or any consumer of gas supplied by the Company whose bid or offer is the same in amount as any bid or offer made by any other person not being a holder of stock or shares in the Company.

Purchase-
money to be
paid within
three months.

10. It shall be one of the conditions of any sale of stock under this Act that the full price thereof including any premium given by any purchaser at such sale shall be paid to the Company within three months after such sale.

Notice to be
given as to
sale of stock.

11. The intention to sell any such stock by auction or by tender shall be communicated in writing to the town clerk of Plymouth to the clerks to the district councils for every district wholly or partly included in the limits of supply and to the secretary of the Committee of the London Stock Exchange at least twenty-eight days before the day of auction or the last day for the reception of tenders as the case may be and notice of such intention shall be duly advertised once in each of two consecutive weeks in one or more local newspapers circulating within the limits of supply.

12.—(1) When any stock created under the powers of this Act has been offered for sale by auction or tender and not sold the same may (if the directors of the Company think fit) be offered at the reserve price put upon the same for the purpose of sale by auction or tender to the holders of stock and shares of the Company in manner provided by the Companies Clauses Act 1863 or to the employees of the Company or to the consumers of gas supplied by the Company or partly to one and partly to another or others.

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Stock not sold may be offered to stockholders employees or consumers.

(2) Any stock not so offered and any stock so offered and not accepted in the case of stock offered to the holders of stock and shares within the time prescribed by the said Act or in the case of stock offered to such employees or consumers within the time limited by the directors of the Company may again be offered for sale by public auction or by tender in the manner prescribed by and subject to the provisions of this Act with respect to the sale of stock created under the powers of this Act and at such time or times as the directors of the Company may think fit and any stock not then sold may be again offered to the holders of stock and shares of the Company or to such employees or consumers at a lower reserve price and so from time to time until the whole of such stock is sold.

13. Any sum of money which shall arise from the issue of any such stock by way of premium after deducting therefrom the expenses of and incident to such issue shall not be considered as profits of the Company but shall be expended in extending or improving the works of the Company or in paying off money borrowed or owing on mortgage by the Company and shall not be considered as part of the capital of the Company entitled to dividend.

Application of premium arising on issue of stock.

14. Ordinary stock created under this Act shall confer the same rights for the purpose of voting at meetings of the Company as would be conferred by shares of equal nominal amount in the capital of the Company.

Votes.

15. The Company may in respect of the additional capital from time to time borrow on mortgage of their undertaking any sum or sums not exceeding in the whole one-third part of the amount of the additional capital by this Act authorised to be raised and at the time actually raised by the issue of stock but no part of any such sum or sums shall be borrowed until the whole of the stock at the time issued together with the premium (if any) realised upon the sale thereof shall have been fully paid up and the Company have proved to the justice who is to certify under the fortieth

Power to borrow in respect of additional capital.

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Debenture stock.

16.—(1) The Company may create and issue debenture stock subject to the provisions of Part III. of the Companies Clauses Act 1863 and of section 21 of the Act of 1894.

(2) Notice of the effect of the said section 21 shall be endorsed on all mortgages and certificates of debenture stock granted or issued after the passing of this Act.

Debenture stock to be sold by auction or tender.

17. The provisions of this Act with respect to disposing of stock by auction or tender shall apply mutatis mutandis not only to the additional ordinary stock but also to any debenture stock to be created by the Company under this Act.

Priority of mortgages and debenture stock over other debts.

18. All money raised or to be raised by the Company on mortgage or by debenture stock under the provisions of the recited Acts or of this Act shall have priority against the Company and the property from time to time of the Company over all other claims on account of any debts incurred or engagements entered into by them after the passing of this Act. Provided always that this priority shall not affect any claim against the Company or their property in respect of any rentcharge granted or to be granted by them in pursuance of the Lands Clauses Acts or in respect of any rent or sum reserved by or payable under any lease granted or made to the Company which is entitled to rank in priority to or *pari passu* with the interest or dividends on their mortgages or debenture stock.

Receipt in case of persons not sui juris.

19. If any money is payable under this Act to any stockholder mortgagee or debenture stockholder being a minor idiot or lunatic the receipt of the guardian or committee of his estate shall be a sufficient discharge to the Company.

Application of money.

20. All money raised under this Act by the Company whether by stock debenture stock or borrowing shall be applied only to the general purposes of the Company being in all cases purposes to which capital is properly applicable.

For appointment of receiver.

21. Section 22 of the Act of 1898 is hereby repealed but subject and without prejudice to any appointment made or proceedings taken under or by virtue of that section and in force or pending at the time of the passing of this Act and in lieu

thereof the mortgagees of the Company may enforce payment of arrears of interest or principal or principal and interest due on their mortgages by the appointment of a receiver and in order to authorise the appointment of a receiver in respect of arrears of principal the amount owing to the mortgagees by whom the application for a receiver is made shall not be less in the whole than seven thousand pounds. A.D. 1903.
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22. From and after the thirtieth day of September one thousand nine hundred and three section 11 (Dividend dependent upon price charged) of the Act of 1894 shall extend and apply as from the issue thereof to the ordinary capital which the Company are by this Act authorised to raise: Price and dividend.

Provided that the price to be charged by the Company for gas supplied by them to persons who shall consume the same by meter in that part of the limits of supply which comprises the parishes of Tamerton Folliot and Egg Buckland and Plymstock shall be three shillings and sixpence per thousand cubic feet of gas supplied. The expression "standard price" in the said section shall be read and have effect as if the said price of three shillings and sixpence had been inserted in the said section in respect of the said portion of the limits of supply and the standard price of two shillings and sixpence mentioned in the said section had been applicable to the remainder of the limits of supply.

23. If the clear profits of the undertaking of the Company in any year amount to a larger sum than is sufficient to pay the authorised rate of dividend on the ordinary stock of the Company the excess or such portion of it as is not carried to the insurance fund or the renewal fund shall be carried to the credit of the divisible profits of the undertaking for the next following year. Application of excess of profits over authorised rate of dividend.

24.—(1) The directors of the Company may if they think fit annually appropriate out of the revenue of the Company and as part of the expenditure on revenue account any sum not exceeding an amount equal to one per centum on the paid-up capital of the Company including premiums to be called "the renewal fund" for the purpose of providing for the renewal and repair of their gasworks mains and pipes and may from time to time appropriate as occasion may require any portion of such fund to such purposes. Renewal fund.

(2) Such fund shall be invested in any securities in which trustees are for the time being authorised by law to invest money and the dividends and interest arising from such securities shall also be invested in the same or like securities in order that the same may accumulate at compound interest until the fund so

A.D. 1903. — formed amounts to a sum equal to ten per centum on the paid up capital for the time being of the Company.

(3) When and so often as the said fund shall reach such sum the interest thereon shall be carried to the credit of the fund available for dividend.

(4) If such fund be at any time reduced below the said sum it may thereafter be made up in manner hereinbefore provided to that sum and so from time to time as often as such reduction shall happen.

(5) Resort may from time to time be had to such fund for the purposes aforesaid notwithstanding that the same may not have reached or may have been reduced below the full amount of ten per centum upon the capital of the Company as aforesaid.

MISCELLANEOUS.

Power to purchase lands by agreement.

25. The Company may for the purposes of their undertaking purchase take and hold (by agreement but not otherwise) any lands and hereditaments not exceeding in the whole ten acres which the Company may require in addition to the lands now belonging to them for the purposes of their works and undertaking but the Company shall not create or permit a nuisance on any such lands and no lands purchased under the powers of this Act shall be used by the Company for the purpose of manufacturing gas or residual products thereon.

Restriction on taking houses of labouring class.

26.—(1) The Company shall not under the powers of this Act purchase or acquire ten or more houses which on the fifteenth day of December last were occupied either wholly or partially by persons belonging to the labouring class as tenants or lodgers or except with the consent of the Local Government Board ten or more houses which were not so occupied on the said fifteenth day of December but have been or shall be subsequently so occupied.

(2) If the Company acquire or appropriate any house or houses for the purposes of this Act in contravention of the foregoing provisions they shall be liable to a penalty of five hundred pounds in respect of every such house which penalty shall be recoverable by the Local Government Board by action in the High Court and shall be carried to and form part of the Consolidated Fund of the United Kingdom Provided that the Court may if it think fit reduce such penalty.

(3) For the purposes of this section—

The expression “house” means any house or part of a house occupied as a separate dwelling; and

The expression “labouring class” means mechanics artisans labourers and others working for wages hawkers costermongers persons not working for wages but working at some trade or handicraft without employing others except members of their own family and persons other than domestic servants whose income does not exceed an average of thirty shillings a week and the families of any of such persons who may be residing with them. A.D. 1903.

27. Section 27 (Quality of gas) of the Act of 1894 is hereby repealed and from and after the passing of this Act the prescribed number of candles shall be fourteen. Quality of gas.

28. The Company shall at any time within twelve calendar months after the passing of this Act if and when required by any consumer of the gas supplied by the Company supply and fix free of charge to such consumer a sufficient number of burners suitable in all respects for the consumption of gas of the illuminating power prescribed by this Act in the place of any burners (not being incandescent burners) used by him at the passing of this Act. Burners for gas of reduced illuminating power.

Notice of the provisions of this section shall be given on each demand note of the Company sent out during the said period.

29. Proceedings for the recovery of any demand not exceeding fifty pounds made under the authority of this Act or any incorporated enactment whether provision is or is not made for the recovery in any specified court or manner may be taken in the county court. Recovery of demands under fifty pounds.

30. All costs charges and expenses of and incident to the preparing applying for obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Company. Costs of Act.

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